

CHAPTER 9: SUBDIVISION REGULATIONS

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Section 9.1 Purpose

The purpose of this chapter is to provide for orderly development within the Town of China Grove; the coordination of proposed streets and utilities with existing infrastructure; the dedication or reservation of rights-of-way or easements for street utility and other purposes; and the creation of conditions essential to public health, safety, and general welfare of the community.

Section 9.2 Types of Subdivisions

The following types of subdivisions shall be allowed in China Grove:

- Exempt subdivisions
- Minor subdivisions
- Major subdivisions

Section 9.3 Approval Authority

Major subdivisions shall be approved by the China Grove Town Council. Minor subdivisions and plats shall be approved by Planning staff.

Section 9.4 Subdivision Approval Process

9.4.1 Subdivisions Exempted by State Law

9.4.1.1 Applicability

Subdivision regulations shall be applicable to all divisions of a tract or parcel of land into two or more lots, building sites, or other divisions when any one or more of those divisions is created for the purpose of sale or building development, whether immediate or future, and shall include all divisions of land involving the dedication of a new street or a change in existing streets; but the following shall not be included within this definition nor be subject to the subdivision regulations authorized by NCGS 160D:

1. The combination or recombination of portions of previously subdivided and recorded lots where the total number of lots is not increased and the resultant lots are equal to or exceed the standards of the local government as shown in its subdivision regulations.
2. The division of land into parcels greater than 10 acres where no street right-of-way dedication is involved.
3. The public acquisition by purchase of strips of land for the widening or opening of streets or for public transportation system corridors.

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4. The division of a tract in single ownership whose entire area is no greater than 2 acres into not more than three lots, where no street right-of-way dedication is involved and where the resultant lots are equal to or exceed the standards of the local government, as shown in its subdivision regulations.
5. The division of a tract into parcels in accordance with the terms of a probated will or in accordance with intestate succession under Chapter 29 of the General Statutes.

9.4.1.2 Expedited Review

The Town may provide for expedited review of specified classes of subdivisions.

9.4.1.3 Recordation

The Town may require only a plat for recordation for the division of a tract or parcel of land in single ownership if all of the following criteria are met:

- a. The tract or parcel to be divided is not exempted under subdivision (2) of Section 9.4.1.1;
- b. No part of the tract or parcel to be divided has been divided under this subsection in the 10 years prior to division;
- c. The entire area of the tract or parcel to be divided is greater than 5 acres;
- d. After division, no more than three lots result from the division;
- e. After division, all resultant lots comply with all of the following:
 - i. All lot dimension size requirements of the applicable land-use regulation, if any;
 - ii. The use of the lots is in conformity with the applicable zoning requirements, if any;
 - iii. A permanent means of ingress and egress is recorded for each lot.

9.4.2 Minor Subdivisions

A minor subdivision is defined as a subdivision where all the following conditions exist:

- No public right-of-way dedication; and
- The entire tract to be subdivided is ten (10) acres or less in size; and
- The resultant subdivision will produce five (5) or fewer lots.

A preliminary plat shall not be required. Engineering Drawings may be required prior to the approval of a final plat depending on the circumstances of the Subdivision.

Minor subdivisions shall be reviewed and approved in accordance with the standards of Section 17.4.

9.4.3 Major Subdivisions

A major subdivision is defined as a subdivision where any one or more of the following conditions exist:

- Dedication of public right-of-way or other public tracts; or,
- Dedication of private right-of-way; or
- The entire tract to be subdivided is greater than ten (10) acres; or,
- The resultant subdivision will produce more than five (5) lots.

Major subdivisions shall be reviewed and approved in accordance with the standards of Section 17.6

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Section 9.5 Submittal Requirements

Subdivision plans shall be submitted in accordance with the standards of Chapter 18, Development Plan Requirements.

Section 9.6 Street Design Standards

Streets in proposed subdivisions shall meet the street design standards of Chapter 10 Parking and Infrastructure Standards and Appendix A Design Standards for Streets and Utilities.

Section 9.7 Sidewalk Standards

Proposed subdivisions shall meet the sidewalk standards of Chapter 10 Parking and Infrastructure Standards and Appendix A Design Standards for Streets and Utilities.

Section 9.8 Water and Sewer Requirements

Proposed subdivisions shall meet the water and sewer requirements of Chapter 10 Parking and Infrastructure Standards, ~~and~~ Appendix A Design Standards for Streets and Utilities, and Salisbury-Rowan County Utilities.

Section 9.9 Open Space and Tree Preservation Requirements

- a. Proposed subdivisions shall meet the open space and tree preservation requirements of Chapter 12 Open Space Standards of the UDO.
- b. If a proposed subdivision is adjacent to a major or minor thoroughfare as designated in the Cabarrus-Rowan MPO's Metropolitan Transportation Plan and contains lots backing up to the thoroughfare, thoroughfare open space shall be provided. This open space shall be provided along any section of the subdivision which is adjacent to said thoroughfare(s), and shall consist of a minimum 20' wide Type E Bufferyard meeting the composition requirements of Section 11.3.5.2. For subdivisions adjacent to a major or minor thoroughfare and utilizing the Open Space Subdivision option in the R-S District as described in Section 7.3.4, a minimum 50' wide Type E Bufferyard is required as part of the open space requirement.

Section 9.10 Stormwater Requirements

Proposed subdivisions shall meet the stormwater management requirements of Chapter 10 Parking and Infrastructure Standards.

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Section 9.11 Watershed Protection Requirements

Per Section 6 12.6, any subdivisions within the Lake Fisher and Lake Corriher watershed protection areas which contain perennial streams, rivers and impoundments subject to riparian buffer requirements shall include the required riparian buffer on the plat, as per NCGS 143-214.23A(f).

Section 9.12 Performance Guarantees

A performance guarantee in accordance with the standards of Section 17.8 Performance Guarantees shall be furnished to the Town prior to Engineering Plan Approval in the following circumstances:

- A. To ensure completion of public infrastructure improvements (e.g. streets, alleys, bike lanes, curb and gutter, sidewalks, bike paths, crosswalks, traffic signs and controls, street lights, fire lanes, bus shelters, and greenway paths) that are required as part of Engineering Plan Approval.
- B. To ensure completion of required plantings of replacement trees, buffer screening, and landscaping.

Section 9.13 School Site Reservation

New subdivisions shall be subject to the School Site Reservation standards of Section 17.7.1.

Section 9.14 Homeowners Association Covenants

Draft homeowners association documents shall be submitted for review by the Town prior to final plat approval, as referenced in Section 17.6.12.